# Harbor Point Mutual Auto Insurance

Bodily Injury Unit

## Claim Notes

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|---|---|
| **Claim number:** | C-1070 |
| **Claimant:** | Michael Castaneda |
| **Adjuster:** | Darin Tyler |

7-8-23

First notice of loss received for a rear-end collision in which the insured's vehicle was struck from behind while stopped at a traffic signal. The claimant is represented by counsel, and all further contact will be routed through the attorney's office.

8-15-23

Reviewed the police report, which confirms the claimant was in the vehicle at the time of impact. Statements from two independent witnesses and the other driver match the account given at first notice, and scene photographs are consistent with the reported sequence of events.

8-21-23

Vehicle inspection completed. The damage to the rear bumper, trunk, and tail lamp assembly is largely in line with the described impact speed and direction. No prior damage to the vehicle is recorded or reported, and nothing suggests the damage predates the policy effective period. The driver is confirmed as a named driver on the policy.

9-6-23

Medical records received from the claimant's treating provider. The reported shoulder injury fits well with the kind and force of this crash. No earlier injury to the same body area is known from prior records or the claimant's history.

10-15-23

Counsel's office provided treatment summary. Care followed a typical course of physical therapy and follow-up visits, tapering as the claimant improved. The claimant has given the same account of events in every conversation with the adjuster to date.

11-29-23

Reviewed the file for the current stage of the claim. Liability and injury information are consistent across all sources, and the file is ready for evaluation of the bodily injury and property damgae components.

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## Recorded Statement

| | |
|---|---|
| **Claim number:** | C-1070 |
| **Statement of:** | Michael Castaneda |
| **Taken by:** | Darin Tyler |
| **Date:** | 6-3-23 |

Q: Thanks for taking the time to speak with me today. This call is being recorded for claim purposes. Can you confirm you're comfortable continuing?

A: Yes, that's fine.

Q: Let's start with what happened. Where were you when the collision occurred?

A: I was stopped at a traffic light in Houston, on a main road heading east, waiting for the light to change.

Q: And what happened next?

A: The car behind me didn't stop in time. I felt a hard jolt from the back and my head snapped forward, then back against the seat.

Q: Did you see the other vehicle before the impact?

A: Only in my mirror, a second before. It didn't look like it was slowing down much.

Q: Were you able to get out of your vehicle afterward?

A: Yes, but I was sore right away. My right shoulder was throbbing and I had trouble lifting my arm.

Q: Did you seek medical attention?

A: I went to an urgent care clinic that same afternoon. They took X-rays and told me to follow up with an orthopedic doctor.

Q: Have you had any prior injuries to that shoulder?

A: No, nothing serious. I had some general soreness from working out now and then, but nothing that required treatment.

Q: Are you currently receiving treatment?

A: Yes, I have physical therapy twice a week, and I'm still limited in how far I can reach overhead.

Q: Thank you. Is there anything you'd like to add that I haven't asked about?

A: Just that my car is still at the repair shop, and I've had to rely on a rental, which has been a hassle.

Q: Understood. Thank you for your cooperation today.